

Court No. - 40

Case :- WRIT - C No. - 22000 of 2023

Petitioner :- Smt. Prema Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Diwakar Shukla

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Sri Diwakar Shukla, learned counsel for the petitioner and Sri Devesh Vikram, learned counsel for the respondent no. 1 and Sri Narendra Kumar Tiwari, learned counsel for the respondent Nos. 2 and 3.

2. The present writ petition has been preferred for the following principal reliefs:-

"(I) Issue a writ, order or direction in the nature of mandamus, directing the respondents authorities to re-connect the Electricity of the petitioner of her Electricity Account I.D. No. 3739725000 and adjust the total deposited Electricity Bill under the scheme of one time settlement scheme dated on 15.07.2022.

(II) Issue a writ, order or direction in the nature of mandamus directing the respondents authorities to decide representation of the petitioner given before them on dated 09.05.2023 to 17.05.2023 within stipulated period as fixed by this Court."

3. The matter pertains to the disputed electricity bills. The Electricity Code is a self-contained comprehensive legislation. In case, the petitioner moves an appropriate complaint before the respondent no. 2 i.e. Executive Engineer, Purvanchal Vidyut Vitaran Nigam Ltd. Khand (first), District Fatehpur, the same shall be heard and decided by the respondent no.2 in accordance with law.

4. Learned counsel for the petitioner submits the amount so deposited by the petitioner under one time settlement scheme dated 15.07.2022 may be adjusted towards final settlement.

5. As the petitioner has disputed the electricity dues, the remedy available to the petitioner is to file a complaint under Clause 6.5 of the Electricity Supply Code, 2005.

6. Accordingly, the petition is **disposed of** with liberty to the

petitioner to challenge the electricity dues by filing objection under Clause 6.5 of the Electricity Supply Code, 2005 within two weeks from today, and in case any complaint is filed, the same shall be heard and decided in accordance with law.

Order Date :- 12.7.2023

Jaswant